

**IN THE COURT OF THE ADDITIONAL SESSIONS JUDGE, SAKET COURTS,
NEW DELHI**

Anticipatory Bail Application No. 412 of 2026

IN THE MATTER OF: Rohan Mehra ... Applicant Versus State (NCT of Delhi) ...
Respondent

WRITTEN SUBMISSIONS ON BEHALF OF THE APPLICANT

1. The Applicant apprehends arrest in FIR No. 118/2026 registered at P.S. Malviya Nagar under Sections 85 and 86 of the Bharatiya Nyaya Sanhita, 2023, on a complaint by his estranged wife. The offences are punishable with imprisonment of less than seven years. The Applicant has joined the investigation on every date he was called.

2. The law on arrest in matrimonial offences is settled. In *Arnesh Kumar v. State of Bihar & Anr.*, (2014) 8 SCC 273 : AIR 2014 SC 2756, the Supreme Court directed that police officers shall not arrest automatically where the offence carries a sentence of less than seven years. The Court summed up the purpose of its directions in these words (para 12):

“Our endeavour in this judgment is to ensure that police officers do not arrest accused unnecessarily and Magistrate do not authorise detention casually and mechanically.”

3. In *Arnesh Kumar* (supra), the Court further held:

“We believe that no arrest should be made merely because the offence is non-bailable and cognizable and therefore, lawful for the police officers to do so.”

4. The safeguards on arrest and detention laid down in *D.K. Basu v. State of West Bengal*, (1997) 1 SCC 416 bind the investigating agency. The Court there observed:

“The power of arrest must be exercised sparingly and only after the investigating officer has recorded reasons in writing that custodial interrogation is indispensable.”

5. The complaint was received on 03.01.2026 and the FIR was registered only

on 28.02.2026, after a preliminary inquiry. The scope of such an inquiry was explained in Lalita Kumari v. Government of Uttar Pradesh & Ors., (2013) 2 SCC 1, and the delay here is unexplained.

6. Any deprivation of personal liberty must follow a procedure that is fair and reasonable. In Maneka Gandhi v. Union of India, (1978) 1 SCC 248, the Court held:

“The procedure prescribed by law has to be fair, just and reasonable, not fanciful, oppressive or arbitrary.”

7. Where the accused has cooperated with the investigation, custodial interrogation is not necessary: Rakesh Malhotra v. State of Haryana, (2016) 11 SCC 742.

8. The Applicant therefore prays that he be released on bail in the event of arrest, on such terms as this Hon'ble Court deems fit.

PLACE: New Delhi DATE: 05.03.2026

COUNSEL FOR THE APPLICANT